

26STCV03209 26STCV03209

County: los-angeles

Division: Civil Law and Motion

Department: 406

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Case Number: 26STCV03209 Hearing Date: August 28, 2026 Dept: 406

DAMIAN GONZALEZ,

Plaintiff,

v.

CLAY DUNN ENTERPRISES, INC.,

Defendant.

Case No.: 26STCV03209

Hearing Date: August 28, 2026

[TENTATIVE] order RE:

defendant's motion to compel arbitration

BACKGROUND

On February 10, 2026, Plaintiff Damian Gonzalez filed this action against Defendant Clay Dunn Enterprises, Inc. for wrongful termination in violation of public policy. Plaintiff alleges that he was terminated as retaliation for requesting sick leave.

On June 24, 2026, Defendant filed the instant motion to compel arbitration. Plaintiff filed an opposition on August 17, 2026. Defendant filed a reply on August 21, 2026.

LEGAL STANDARD

“On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists....” (Code Civ. Proc, § 1281.2.) “The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236.)

DISCUSSION

I. Proof of Agreement

“The moving party ‘can meet its initial burden by attaching to the motion or petition a copy of the arbitration agreement purporting to bear the opposing party’s signature.’” (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.) “At this step, a movant need not ‘follow the normal procedures of document authentication’ and need only ‘allege the existence of an agreement and support the allegation.’” (Ilyere v. Wise Auto Group (2023) 87 Cal.App.5th 747, 755.)

Here, the relevant arbitration provision is contained in a Master Labor Agreement (MLA), which is a collective bargaining agreement (CBA) between the California Plumbing and Mechanical Contractors Association and the Southern California Pipe Trades District Council 16 of the United Association. (Amberg Decl., Ex. 1.) The arbitration provision provides: “All claims or disputes involving alleged violations of the Industrial Welfare Commission Wage Order 16, the California Labor Code, and the Fair Labor Standards Act, and all derivative claims under Cal. Business & Professions Code section 17200, et seq., as well as for associated penalties, not otherwise covered by the Service Master Labor Agreement, shall be subject to final and binding arbitration pursuant to the Employment Arbitration Rules of the American Arbitration Association.” (Ibid.)

Plaintiff does not dispute that this agreement exists, is enforceable, and applies to him. In fact, Plaintiff has initiated arbitration of his Labor Code claims pursuant to the agreement. However, Plaintiff disputes that the agreement covers his claim for wrongful termination in violation of public policy.

II. Application to Wrongful Termination Claim

The arbitration provision in the MLA applies to “[a]ll claims or disputes involving alleged violations of . . . the California Labor Code.” (Amberg Decl., Ex. 1.) This is a clear and unmistakable agreement to arbitrate. (See Vasquez v. Superior Court (2000) 80 Cal.App.4th 430, 434 [“A union-negotiated waiver of employees’ statutory rights to a judicial forum for claims of employment discrimination must be ‘clear and unmistakable’”].) The wrongful termination claim is a claim “involving alleged violations of . . . the California Labor Code.” Plaintiff alleges that Defendant violated public policy by terminating him in violation of Labor Code sections 1102.5 and 98.6, the same claims asserted in his arbitration demand. (See Compl. ¶ 27; Meskin Decl., Ex. 3.)

Moreover, both the complaint and arbitration demand seek the same damages arising from the same wrongdoing. The wrongful termination and Labor Code retaliation claims are merely different legal theories for the same injury and therefore constitute one cause of action. (See Villacres v. ABM Industries Inc. (2010) 189 Cal.App.4th 562, 576 [“Even where there are multiple legal theories upon which recovery might be predicated, one injury gives rise to only one claim for relief”]; see also Wade v. Ports America Management Corp. (2013) 218 Cal.App.4th 648, 657-58 [barring civil complaint for wrongful termination in violation of public policy because it asserted the same primary right as a prior arbitration grievance—the right “not to be discharged for wrongful reasons”].)

Plaintiff cites no law permitting adjudication of the same cause of action in two different forums. The law is in fact the opposite: “arbitrating parties are obliged . . . to place before their arbitrator all matters within the scope of the arbitration, related to the subject matter, and relevant to the issues.” (Wade, supra, 218 Cal.App.4th at p. 657.) Plaintiff’s wrongful termination claim falls squarely within this definition. Therefore, it is subject to arbitration in the same way as the Labor Code claims.

CONCLUSION

Defendant's motion to compel arbitration is GRANTED. The case is stayed in its entirety.

ISRAEL MATTHEW ORTIZ,

Plaintiff,

v.

CLAY DUNN ENTERPRISES,

Defendant.

Case No.: 26STCV03209

Hearing Date: August 28, 2026

[TENTATIVE]

order RE:

defendant's motion to compel arbitration

BACKGROUND

On January 30, 2026, Plaintiff

Israel Matthew Ortiz filed this action against Defendant Clay Dunn Enterprises

for wrongful termination in violation of public policy. Plaintiff alleges that

he was subjected to various Labor Code violations and was terminated as

retaliation for complaining.

On June 24, 2026, Defendant filed

the instant motion to compel arbitration. Plaintiff filed an opposition on

August 17, 2026. Defendant filed a reply on August 21, 2026.

LEGAL STANDARD

“On petition of a party to an arbitration

agreement alleging the existence of a written agreement to arbitrate a

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controversy, the court shall order the petitioner and the respondent to

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arbitration bears the burden of proving the existence of an arbitration

agreement, and the party opposing arbitration bears the burden of proving any defense,

such as unconscionability.” (Pinnacle Museum Tower Assn. v. Pinnacle Market

Development (US), LLC (2012) 55 Cal.4th 223, 236.)

DISCUSSION

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Proof of Agreement

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Here, the relevant arbitration provision

is contained in a Master Labor Agreement (MLA), which is a collective

bargaining agreement (CBA) between the California Plumbing and Mechanical

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Cal.App.4th 430, 434 [“A union-negotiated waiver of employees’ statutory rights

to a judicial forum for claims of employment discrimination must be ‘clear and

unmistakable”].) The wrongful termination claim is a claim “involving alleged

violations of . . . the California Labor Code.” It is based on the exact same

facts as Plaintiff’s Labor Code claims and relies on the Labor Code to supply

the requisite public policy. (See Compl. ¶¶ 12-32; Meskin Decl., Ex. 3

(Arbitration Demand) ¶¶ 1-17.)

Moreover, both the complaint and

arbitration demand seek the same damages arising from the same wrongdoing. The

wrongful termination and Labor Code retaliation claims are merely different

legal theories for the same injury and therefore constitute one cause of

action. (See *Villacres*

v. ABM Industries Inc. (2010) 189 Cal.App.4th 562, 576 [“Even where there

are multiple legal theories upon which recovery might be predicated, one

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